

		Here, the proposed Cross-Complaint has claims for 1) declaratory relief 2) accounting and 3) breach of contract against Plaintiff. It is a compulsory cross-complaint. Therefore, the Motion must be granted unless there is bad faith or prejudice. The Court finds neither. Thus, the Motion is granted. Defendant shall file and serve his Cross-Complaint within 15 days. CMC is continued until 10/26/26 at 9:00 a.m. Defendant shall serve notice of this Order.
3	Chang v. Windwood 2025-01528996	Demurrer to Answer Off Calendar
4	Tapia v. Country Villa 2022-01276368	Leave to File Second MSJ / Reconsideration The court will hear argument Motions to Compel / Sanctions / Terminating Sanctions <u>Request for Order Compelling Responses</u> A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, the responding party “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) The “meet and confer” requirement does not apply to a motion to compel responses for failure to serve timely response. (See Code Civ. Proc., § 2030.290; Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1160 [“An ‘attempt to resolve informally’ is not required where a party has <i>failed</i> to respond within the statutory time limit”].) “In addition to the number of interrogatories permitted by Sections 2030.030 and 2030.040, a party may propound a supplemental interrogatory to elicit any later acquired information bearing on all

answers previously made by any party in response to interrogatories.” (Code Civ. Proc. § 2030.070, subd. (a).) Once an initial trial date has been set, the supplemental interrogatory may be propounded, once, before the discovery cut-off date. (Code Civ. Proc. § 2030.070, subd. (b).) Responses are due within 30 days after service of the supplemental interrogatory. (Code Civ. Proc., § 2030.260, subd. (a).)

Likewise, “[i]n addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc. § 2031.050, subd. (a).) Once an initial trial date has been set, this demand may be made, once, before the discovery cut-off date. (Code Civ. Proc. § 2031.050, subd. (b).) Responses are due within 30 days after service of the demand. (Code Civ. Proc., § 2031.260, subd. (a).)

Here, Defendant has proffered evidence showing it served Plaintiff with second and third sets of special interrogatories, and with a supplemental interrogatory and request for production of documents. Plaintiff failed to serve timely responses, thereby waiving any objections. Plaintiff has not opposed the motions, or shown that he served responses prior to the hearing. Accordingly, the motions for order compelling responses to the second and third sets of special interrogatories, and supplemental interrogatory and request for production of documents, are granted. Plaintiff is ordered to serve verified responses, without objections, within **15 days** of the notice of ruling.

In connection with these motions, Defendant is awarded a total of \$1,150.80 in reasonable attorneys’ fees and costs. (Code Civ. Proc., §§ 2023.010, 2023.030.)

Request for Terminating Sanctions

With respect to the request for a terminating sanction, Defendant argues in its motions, that:

... Plaintiff has consistently, willfully, and repeatedly refused to comply with his discovery obligations. Plaintiff has evidenced a long history of discovery abuse and willful violations of his obligations. There is no indication that a less severe sanction will be sufficient to ensure Plaintiff’s compliance with discovery rules, and Defendant requests an order dismissing the action, with prejudice, as against Defendant. Due to Plaintiff’s refusal to

		participate in discovery, the defense has been, and continues to be, severely prejudiced. “Trial courts are to take an incremental approach to discovery sanctions, <i>starting with monetary sanctions</i> and leading up to the ultimate sanction of termination. Sanctions must be proportionate to the harm caused by the misconduct and should not provide a ‘windfall’ to the party requesting sanctions.” (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095 [emphasis added] [citations omitted].) “Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) In its moving papers, Defendant fails to point out which discovery orders Plaintiff has violated. Based on the record, the Court sees no justification for resorting to the ultimate sanction of termination at this juncture. Defendant shall give notice of the ruling.
5	Hoffman v. Ear and Ear 2024-01411742	Motion to Compel Further Responses / Sanctions Defendant Kimberly Ear’s unopposed motion to compel Plaintiff Hartley Hoffman’s further responses to her special interrogatories is granted. A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under CCP § 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc. § 2030.300(a).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) Here, Plaintiff only served objections to Defendant’s interrogatories.